

SENATE BILL 315

By Yarbro

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 9; Title 37 and Title 71, relative to funding
child care services.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 3, Part 12, is amended by
adding the following as a new section:

(a) This section is known and may be cited as the "Workers Need Child Care
Act."

(b) There is created within the state general fund a special account to be known
as the child care infrastructure fund (the fund). The purpose of the fund is to align child
care with workforce development needs.

(c) The department of human services shall administer the fund.

(d) The fund is composed of money appropriated by the general assembly for
the fund, and gifts, grants, and other donations received by the department for the fund.

(e) The department shall allocate and disperse grants each fiscal year from the
fund to nonprofit entities to be expended only for establishing a new licensed child care
agency in this state.

(f) Money in the fund may be used by the department for program
administration, marketing expenses, and program evaluation; however, such expenses
must not exceed five percent (5%) of the total amount appropriated for the program in
any fiscal year.

(g) The state treasurer shall invest moneys in the fund for the benefit of the fund in accordance with § 9-4-603. Interest accruing on investments and deposits of the fund must be credited to and remain part of the fund.

(h) Any unencumbered moneys and any unexpended balance of the fund remaining at the end of a fiscal year do not revert to the general fund, but must be carried forward until expended in accordance with this section. Moneys in the fund must not be diverted to the general fund or any other public fund.

(i) All expenditures from the fund are subject to review in the form of an annual report submitted by the commissioner of human services to the chair of the health and welfare committee of the senate and the chair of the health committee of the house of representatives.

(j) The department shall promulgate rules necessary to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in chapter 5 of this title.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.